



153rd GENERAL ASSEMBLY
FEE IMPACT

BILL:	SENATE BILL NO. 208
SPONSOR:	Senator Pettyjohn
DESCRIPTION:	AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO PSYCHOLOGY PROFESSIONALS.

In accordance with 29 Del. C. § 913, the following information is provided relating to licenses and fees.

Description of the Legislation:

Among other changes, this Act adds 2 additional psychology professionals regulated under Chapter 35 of Title 24 of Delaware Code: (1) a licensed psychology associate and (2) a master's-level psychological assistant. This Act also renames the psychological assistant in Delaware Code to "doctoral-level psychological assistant" to mark the difference in education between the existing psychological assistant and the master's-level psychological assistant added by this Act. This Act is effective on its enactment and is to be implemented, the earlier of the following: (1) twelve months from the date of enactment, and (2) notice by the Board of Examiners of Psychology (the "Board") published in the Register of Regulations that final regulations to implement this Act have been adopted.

Affected Entities:

Department of State, Division of Professional Regulation, Board of Examiners of Psychologists

Fiscal Impact:

This Act would allow the Division of Professional Regulation (the "Division") to impose a fee for the newly added license types for psychology professionals.

The fee that the Division may impose is unknown at the time of issuing this fee impact statement, as the existing Delaware Code provides that any such fees are subject to the approval of the Secretary of State. Any such fee is to reasonably reflect all costs necessary to defray the expenses of the Board, or of the Division on behalf of the Board ([29 Del. C. § 8735\(c\)](#)). Further, the number of professionals who may apply to become licensed under these newly established license types is unknown; therefore, the additional fees that may be assessed due to the newly added license types are indeterminable.

Fiscal Year 2027:	Likely Not in Effect – pending the earlier of twelve months from enactment or notice that final regulations to implement this Act have been adopted
Fiscal Year 2028:	Indeterminable
Fiscal Year 2029:	Indeterminable

Intended Use of Revenue:

Licensing fees fund the Division and the expenditures related to the applicable licensing board.

Prepared by Jason R. Smith
Office of the Controller General